

# Omissions (2)



### 3. The General Approach for Public Authorities

# Uniform v policy approach

- Uniform approach: public bodies do not owe a duty of care for omissions unless private person in the same circumstances would
- Policy approach: the rule for public bodies is different than for private persons, because there are special policy factors in play

# History: the policy approach



- ❑ Historically the Crown (and thus public bodies) could not be sued.
- ❑ This changed in the late 1800s.
- ❑ But the basic idea continued to exert some influence on the law for some time after...

# History: the policy approach



- ❑ The idea that the liability of public bodies depends on policy questions was rooted in the two-stage test from *Anns v Merton LBC* (1978)
- ❑ It was re-enforced by *X v Bedfordshire CC* (1995), where the Court thought that public bodies ought generally to be left to their own devices without the threat of being sued, as a matter of policy
- ❑ Courts were worried about: (i) diverting funds from public services; (ii) 'defensive' practices emerging; (iii) taking up the time of public bodies



# Modernity: the uniform approach wins



*“Robinson ... confirmed, following Michael and numerous older authorities, that public authorities are generally subject to the same general principles of the law of negligence as private individuals and bodies, except to the extent that legislation requires a departure from those principles. That is the basic premise of the consequent framework for determining the existence or non-existence of a duty of care on the part of a public authority.”*

*(Lord Reed, N v Poole BC, [64])*



## 4. The Development of the Modern Approach for Public Authorities



# *Stovin v Wise* [1996] AC 923



Facts:

- ☐ C, a motorcyclist, collided with D, driving a car, at a junction.
- ☐ The junction was hazardous and a bank of earth obstructed D's view.
- ☐ The local authority had the power to ensure the bank of earth was moved, and had asked the landowner (British Rail) to do so.
- ☐ However, the landowner did not respond, and the local authority had not followed up.

Held:

- ☐ The local authority had no duty of care here.



# *Stovin v Wise* [1996] AC 923



## Omissions and public bodies

- “It is one thing for the law to say that a person who undertakes some activity shall take reasonable care not to cause damage to others. It is another thing for the law to require that a person who is doing nothing in particular shall take steps to prevent another from suffering harm from the acts of third parties ... or natural causes.”
- “Mr. Stovin's injuries were not caused by the negotiations between the council and British Rail or anything else which the council did. So far as the council was held responsible [in the lower courts], it was because it had done nothing to improve the visibility at the junction.”

(Lord Hoffmann, p.943 & p.945)

# *Stovin v Wise* [1996] AC 923



## Omissions and public bodies

- “It is certainly true that some of the arguments against liability for omissions do not apply to public bodies like a highway authority. ... But this does not mean that the distinction between acts and omissions is irrelevant to the duties of a public body ...”
- “a public body is in principle liable for torts in the same way as a private person. But its statutory powers or duties may restrict its liability.”

(Lord Hoffmann, p.946)

# *Stovin v Wise* [1996] AC 923



## **Statutory obligation to act $\neq$ tort duty to act**

“the minimum preconditions for basing a duty of care upon the existence of a statutory power, if it can be done at all, are:

first, that it would in the circumstances have been irrational not to have exercised the power, so that there was in effect a public law duty to act, and

secondly, that there are exceptional grounds for holding that the policy of the statute requires compensation to be paid to persons who suffer loss because the power was not exercised.”

(Lord Hoffmann, p.953)

# *Stovin v Wise* [1996] AC 923



## Two conditions not satisfied

- ❑ “It seems to me ... that the question of whether anything should be done about the junction was at all times firmly within the area of the council's discretion. As they were therefore not under a public law duty to do the work, the first condition for the imposition of a duty of care was not satisfied.”
- ❑ “I do not think that there are any grounds upon which it can be said that the public law duty should give rise to an obligation to compensate persons who have suffered loss because it was not performed. There is no question here of reliance on the council having improved the junction.”

(Lord Hoffmann, p.957)



# *Gorringe v Calderdale Metropolitan BC [2004] 1 WLR 1057*



## Facts:

- ❑ Local council failed to repaint 'SLOW' sign on the crest of a hill.
- ❑ C drove over the hill and collided with a bus on the other side.
- ❑ Section 39 of the Road Traffic Act 1988 imposes a duty on highway authorities to prepare and carry out a programme of measures designed to promote and improve road safety.

## Held:

- ❑ No tort duty on the council to repaint the sign.

# *Gorringe v Calderdale Metropolitan BC* [2004] 1 WLR 1057



## **Statutory obligation to act $\neq$ tort duty to act**

- ❑ “I find it difficult to imagine a case in which a common law duty can be founded simply upon the failure (however irrational) to provide some benefit which a public authority has power (or a public law duty) to provide.” (Lord Hoffmann, [32])
- ❑ “In my opinion, if a statutory duty does not give rise to a private right to sue for breach, the duty cannot create a duty of care that would not have been owed at common law if the statute were not there.” (Lord Scott, [71])

# *Gorringe v Calderdale Metropolitan BC [2004] 1 WLR 1057*



## **Failure to meet statutory duty = pure omission**

- “common law liability ... could not, in my opinion, ever arise from a breach of section 39 except in circumstances where the liability would have arisen independently of the section 39 duty. ... Suppose a council does absolutely nothing and is in flagrant breach of its [s.39] duty. How could that omission ever lead to a common law liability for failure to take some specific road safety step? The statutory duty is an entirely general one. It imposes a ‘target’ duty and no more than that. It cannot be read as intending to create specific duties owed to individuals.” (Lord Scott, [72])

# *Michael v CC of S Wales Police [2015] UKSC 2*



## Facts:

- ❑ Ms Michael called the police at 2:29 am. She said that her ex-boyfriend had turned up at her house in the middle of the night and had hit her. He had found her with another man. He had gone to drive the other man home and said that when he came back he would hurt her.
- ❑ The police graded the priority of the call as 'G2'. This meant that officers assigned to the case should respond to the call within 60 minutes.
- ❑ At 2:43 am she called again. She screamed and the line went dead.
- ❑ The police arrived at 2:51 am. She had been stabbed many times and was dead.

## Held:

- ❑ The police owed no duty of care (5-2 result)



# *Michael v CC of S Wales Police* [2015] UKSC 2



## **Lord Toulson (majority)**

- ❑ “the common law does not generally impose liability for pure omissions” [97]
- ❑ “It does not follow from the setting up of a protective system from public resources that if it fails to achieve its purpose, through organisational defects or fault on the part of an individual, the public at large should bear the additional burden of compensating a victim for harm caused by the actions of a third party for whose behaviour the state is not responsible.” [114]

# *Michael v CC of S Wales Police* [2015] UKSC 2



## Lord Toulson (majority)

“[C’s counsel] submitted that what was said by the ... call handler who received Ms Michael’s 999 call was arguably sufficient to give rise to an assumption of responsibility on the *Hedley Byrne* principle ... [T]he argument is not tenable. The only assurance which the call handler gave to Ms Michael was that she would pass on the call to the South Wales Police. She gave no promise how quickly they would respond. ... The case is very different from *Kent v Griffiths* ... where the call handler gave misleading assurances that an ambulance would be arriving shortly.” [138]

# *Michael v CC of S Wales Police [2015] UKSC 2*



## **Lord Kerr (dissent)**

- ❑ “Should someone in a vulnerable state, fearing imminent attack, who believes that an assurance of timeous assistance has been made when, through negligence on the part of the police, that impression has been wrongly created, be treated differently from another who has in fact received an explicit assurance of immediate help, if both have relied on what they believed to be a clear promise that police would attend and avert the apprehended danger?” [165]
- ❑ “the notion that [the necessary proximity] can only arise where there has been an express assumption of responsibility by unambiguous undertakings on the part of the police and explicit reliance on those by the claimant or victim is not only arbitrary, it fails to reflect the practical realities of life.” [167]

# *Robinson v CC of West Yorkshire* [2018] UKSC 4



## Uniform approach

“[P]ublic authorities are generally subject to the same liabilities in tort as private individuals and bodies. ...[I]f conduct would be tortious if committed by a private person or body, it is generally equally tortious if committed by a public authority. ... On the other hand, public authorities, like private individuals and bodies, are generally under no duty of care to prevent the occurrence of harm. ... In the absence of [special] circumstances ... public authorities generally owe no duty of care towards individuals to confer a benefit upon them by protecting them from harm, any more than would a private individual or body.”

(Lord Reed, [31-35])



# *Robinson v CC of West Yorkshire* [2018] UKSC 4



## Uniform approach

“Since [*Gorringe*], a public authority’s non-liability for the consequences of an omission can generally be justified on the basis that the omissions principle is a general principle of the law of negligence, and the law of negligence generally applies to public authorities in the same way that it applies to private individuals and bodies.”

(Lord Reed, [31-35])

# *N v Poole BC* [2019] UKSC 25



## Facts:

- ☐ Cs, who were children, were placed by the council next to a neighbour known to be antisocial.
- ☐ They were harassed by the neighbour. The council took various measures, but did not rehouse them, and the abuse continued.
- ☐ C, a child, developed psychiatric issues.
- ☐ Cs claimed the council should either have rehoused the family, or should have at least moved the children.

## Held:

- ☐ The council owed Cs no duty of care.

# *N v Poole BC* [2019] UKSC 25



## Uniform approach

1. “public authorities may owe a duty of care in circumstances where the principles applicable to private individuals would impose such a duty, unless such a duty would be inconsistent with ... the legislation”
2. “public authorities do not owe a duty of care at common law merely because they have statutory powers or duties, even if, by exercising their statutory functions, they could prevent a person from suffering harm”
3. “public authorities can come under a common law duty to protect from harm in circumstances where the principles applicable to private individuals or bodies would impose such a duty, as for example where the authority has created the source of danger or has assumed a responsibility to protect the claimant from harm”

(Lord Reed, [65])

# *N v Poole BC* [2019] UKSC 25



## **No assumption of responsibility in this case**

“The claim against the council is based ... on an assumption of responsibility ... In the present case ... the council’s investigating and monitoring the claimants’ position did not involve the provision of a service to them on which they or their mother could be expected to rely. ... Nor could it be said that the claimants and their mother had entrusted their safety to the council, or that the council had accepted that responsibility. Nor had the council taken the claimants into its care, and thereby assumed responsibility for their welfare.”

(Lord Reed, [78-81])



# *HXA & YXA v Surrey County Council* [2023] UKSC 52

- “the courts must decide whether there is a duty of care at common law by applying to the public authority the same principles that would be applied if the public authority had been a private individual.” [87]
- “Our decisions in these appeals should remove any conceivable doubt that lawyers may have had in understanding the full impact of *N v Poole*.” [102]

# *Tindall v CC of Thames Valley Police* [2024] UKSC 33

“it is now firmly established (or reestablished) that the liability of public authorities in the tort of negligence to pay compensation is governed by the same principles that apply to private individuals.

Many public authorities - notably, protective and rescue services such as the police force and fire brigade - have statutory powers and duties to protect the public from harm. But failure to do so, however blameworthy, does not make the authority liable in the tort of negligence to pay compensation to an injured person unless, applying the same principles, a private individual would have been so liable.”

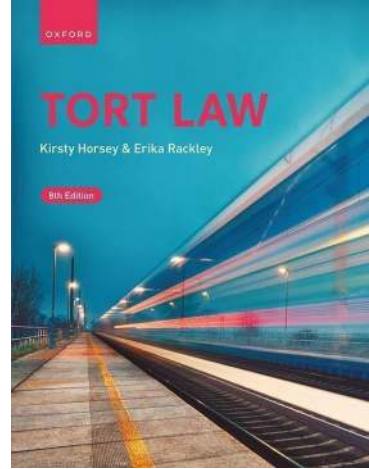
(Lords Leggatt and Burrows, [1])



## 5. Case Studies

# Health warning re H&R

- ❑ H&R claim that the position is different for different public authorities
- ❑ They argue that a DoC is easier to establish for ambulance services, child welfare services, and educational services (e.g. *Kent v Griffiths*, *Phelps v Hillingdon*, and *Barrett v Enfield*)
- ❑ They argue that a DoC is harder to establish for other types of public bodies (e.g. *Robinson, Michael*, *N v Poole BC*)
- ❑ **Arguable that what really explains the differences is not the different types of public bodies in these cases, but rather the basic principle that there is no liability for omissions apart from in exceptional circumstances**





# *Capital and Counties plc v Hampshire County Council* [1997] QB 1004



- 3 cases: (i) fire service arrived and negligently shut down sprinkler system; (ii) fire service failed to notice smouldering fire which resulted from an explosion; (iii) fire service failed to maintain hydrants and could not find others
- Result: fire service owed a DoC in (i), but *not* in (ii) or (iii)

# *Capital and Counties plc v Hampshire County Council* [1997] QB 1004



- “the fire brigade are not under a common law duty to answer the call for help ... If, therefore, they fail to turn up, or fail to turn up in time, because they have carelessly misunderstood the message, got lost on the way or run into a tree, they are not liable.” (p.1030)
- “a fire brigade does not [owe] ... a duty of care merely by attending at the fire ground and fighting the fire; this is so, even though the senior officer actually assumes control of the fire-fighting operation.” (p.1038)

# Comparison of *Kent* and *Capital and Counties*

- H&R say that these cases show the ambulance service is treated differently from the fire service.
- But, arguably, that would be inconsistent with the idea in *N v Poole BC* that all “public authorities are generally subject to the same general principles of the law of negligence as private individuals”.
- Better explanation (in my view): in *Kent* the call handler gave specific assurances and so made things worse, but in *Capital and Counties* the fire service gave no such specific assurances.